Seven (7) copies of the exceptions, the original signed in ink, shall be filed.

A copy of such exceptions shall forthwith be served upon each of the other attorneys and respondents who were served with a copy of the trial examiner's report.

If exceptions are to be argued orally, they shall be argued at the time of final argument upon the merits.

Promulgated as of this date in pursuance of the action of the Federal Trade Commission under the date of October 2, 1945, effective as of July 1, 1945.

(Sec. 6, 38 Stat. 721; 15 U.S.C. sec. 46)

By direction of the Commission.

OTIS B. JOHNSON,
Secretary.

[F. R. Doc. 45-18641; Filed, Oct. 8, 1945; 11:24 a. m.]

[Docket No. 5108]

PART 3—DIGEST OF CEASE AND DESIST ORDERS

JULIUS C. SCHWARZ, ET AL.

§ 3.69 (a) *Misrepresenting oneself and goods—Business status, advantages or connections—Connections and arrangements with others:* § 3.69 (b) *Misrepresenting oneself and goods—Goods—Manufacture or preparation:* § 3.69 (b) *Misrepresenting oneself and goods—Goods—Nature:* § 3.72 (m 15) *Offering deceptive inducements to purchase or deal—Sales for non-commercial recipients or objectives:* § 3.96 (a) *Using misleading name—Goods—Source or origin—Maker.* In connection with the offering for sale, sale, and distribution of books of biographical reference or other similar publications in commerce, (1) using the term "Who's Who" in the title of any book of biographical reference; or representing in any other manner that the respondents are associated or connected with the publishers of "Who's Who in America" or that their publications are edited or compiled with the same accuracy, reliability, and selectivity as that used by the publishers of "Who's Who in America"; (2) representing, directly or by implication that respondents' books of biographical reference are designed to, or intended to, promote inter-American or international relationship; or (3) representing as an authoritative book of biographical reference any publication where the inclusion of the biography of any individual therein is dependent upon the purchase of, or agreement to purchase, such publication; prohibited. (Sec. 5, 38 Stat. 719, as amended by sec. 3, 52 Stat. 112; 15 U.S.C., sec. 45b) [Cease and desist order, Julius C. Schwarz, et al., Docket 5108, September 7, 1945]

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 7th day of September, A. D. 1945.

In the Matter of Julius C. Schwarz, Freda Schwarz, and Rubin Rocker, Individuals, and W. W. in the Western Hemisphere, Inc., a Corporation

This proceeding having been heard by the Federal Trade Commission upon the complaint of the Commission, answers of the respondents, testimony and other evidence in support of the complaint and in opposition thereto taken before trial examiners of the Commission theretofore duly designated by it, report of Trial Examiner George Biddle upon the evidence and exceptions filed thereto, and brief filed in support of the complaint; and the Commission having made its findings as to the facts and its conclusion that the respondents, Julius C. Schwarz and Freda Schwarz (named in the complaint, respectively, as Julius C. Schwartz and Freda Schwartz) and Rubin Rocker, individuals, and W. W. in the Western Hemisphere, Inc., a corporation, having violated the provisions of the Federal Trade Commission Act:

It is ordered, That the respondents Julius C. Schwarz, Freda Schwarz, and Rubin Rocker, individuals, and respondent W. W. in the Western Hemisphere, Inc., a corporation, and its officers, and their respective representatives, agents, and employees, directly or indirectly through any corporate or other device or in any other manner in connection with the offering for sale, sale, and distribution of books of biographical reference or other similar publications in commerce as "commerce" is defined in the Federal Trade Commission Act, do forthwith cease and desist from:

1. Using the term "Who's Who" in the title of any book of biographical reference; or representing in any other manner that the respondents are associated or connected with the publishers of "Who's Who in America" or that their publications are edited or compiled with the same accuracy, reliability, and selectivity as that used by the publishers of "Who's Who in America."

2. Representing directly or by implication that respondents' books of biographical reference are designed to, or intended to, promote inter-American or international relationship.

3. Representing as an authoritive book of biographical reference any publication where the inclusion of the biography of any individual therein is dependent upon the purchase of, or agreement to purchase, such publication.

It is further ordered, That the respondent shall, within sixty (60) days after service upon them of this order, file with the Commission a report in writing, setting forth in detail the manner and form in which they have complied with this order.

By the Commission.

[SEAL] OTIS B. JOHNSON,
Secretary.

[F. R. Doc. 45-18552; Filed, Oct. 5, 1945; 11:25 a. m.]

TITLE 22—FOREIGN RELATIONS

Chapter I—Department of State

Subchapter B—The Foreign Service

[Foreign Service Reg. S-12]

PART 122—VISAS FOR ALIENS

Pursuant to the authority vested in me by R. S. 161 (5 U.S.C. 22); by Executive Order 9452 of June 26, 1944 (3 CFR, 1944 Supp. 66), as amended by Executive Order 9514 of January 18, 1945 (10 F.R. 771); and by Executive Order 9521 of February 13, 1945 (10 F.R. 1991), sections 1 and 2 of this regulation are prescribed to constitute Chapter XXII of the Foreign Service Regulations in place of sections XXII-1 and XXII-3 of the Foreign Service Regulations (Title 22, Cum. Supp., Part 122, §§ 122.1 and 122.3 of the Code of Federal Regulations of the United States).

§ 122.1 *Duties of officers of the Foreign Service in connection with the enforcement of immigration laws.* Officers of the Foreign Service, except consular agents, shall familiarize themselves with the existing laws and regulations on the subject of immigration and visas, including the regulations issued by the Attorney General, the Commissioner of Immigration and Naturalization, or other officials acting in the name of the President, and shall perform duties required of them by the immigration laws or by the regulations issued thereunder. They shall submit reports to the Department on any actual, attempted, or suspected violation of the immigration laws or regulations and in an emergency may also suitably inform the appropriate immigration officials directly.

§ 122.2 *Granting of diplomatic visas.* Diplomatic visas may be granted abroad under such rules and regulations as the Secretary of State may prescribe.

In accordance with Executive Order 9521 of February 13, 1945 (10 F.R. 1991), it is determined that the subject-matter of that part of Executive Order 8400 of April 29, 1940, establishing sections 1 and 3 of Chapter XXII of the Foreign Service Regulations of the United States of America (Title 22, Cum. Supp., Part 122, §§ 122.1 and 122.3 of the Code of Federal Regulations of the United States), and the subject-matter of Executive Order 8535 of September 6, 1940, amending section 1 of Chapter XXII of the Foreign Service Regulations of the United States of America (Title 22, Cum. Supp., Part 122, § 122.1 of the Code of Federal Regulations of the United States) are covered by the present regulation which is designed and intended to supersede the above-mentioned parts of Executive Order 8400 and the above-mentioned Executive Order 8535. In consequence whereof said parts of Executive Order 8400 and said Executive Order 8535 have no further force and effect.

This regulation shall become effective immediately upon registration in the Di-

vision of the Federal Register, National Archives.

For the Secretary of State.

[SEAL] FRANK MCCARTHY,
Assistant Secretary.

[F. R. Doc. 45-18625; Filed, Oct. 5, 1945; 5:02 p. m.]

TITLE 29—LABOR

Chapter IX—Department of Agriculture (Agricultural Labor)

[Supp. 86]

PART 1120—SALARIES AND WAGES OF AGRICULTURAL LABOR IN THE STATE OF NORTH DAKOTA

WORKERS ENGAGED IN HARVESTING POTATOES IN CERTAIN NORTH DAKOTA COUNTIES

§ 1120.1 *Workers engaged in harvesting potatoes in Pembina, Walsh, Steele, Grand Forks, Trail, Cass, and Cavalier Counties, State of North Dakota.* Pursuant to § 4001.7 of the regulations of the Economic Stabilization Director relating to salaries and wages issued August 28, 1943, as amended (8 F.R. 11960, 12139, 16702; 9 F.R. 6035, 14547; 10 F.R. 9478, 9628) and to the regulations of the War Food Administrator issued March 23, 1945 (10 F.R. 3177) entitled "Specific Wage Ceiling Regulations" and based upon a certification of the North Dakota USDA Wage Board that a majority of the producers of potatoes in the area affected participating in hearings conducted for such purpose have requested the intervention of the Secretary of Agriculture, and based upon relevant facts submitted by the North Dakota USDA Wage Board and obtained from other sources, it is hereby determined that:

(a) *Areas, crops and classes of workers.* Persons engaged in harvesting potatoes in Pembina, Walsh, Steele, Grand Forks, Trail, Cass, and Cavalier Counties, State of North Dakota, are agricultural labor as defined in § 4000.1 (1) of the regulations of the Economic Stabilization Director issued on August 28, 1943, as amended 8 F.R. 11960, 12139, 16702; 9 F.R. 6035, 14547; 10 F.R. 9478, 9628).

(b) *Maximum wage rates for harvesting potatoes.* (1) Maximum wages for picking potatoes—10 cents per 75- to 80-pound bag when board is not furnished, and 8 cents when board is furnished.

(2) Maximum wages for loading—$1.25 per hour.

(3) Maximum wages for driving truck or potato digger—$1 per hour.

(c) *Administration.* The North Dakota USDA Wage Board, the address of which shall be North Dakota USDA Wage Board, % E. J. Haslerud, Chairman, Extension Service, State College Station, Fargo, North Dakota, will have charge of the administration of this section in accordance with the provisions of the specific wage ceiling regulations issued by the War Food Administrator on March 23, 1945 (10 F.R. 3177).

(d) *Applicability of specific wage ceiling regulations.* This section shall be deemed to be a part of the specific wage ceiling regulations issued by the War Food Administrator on March 23, 1945 (10 F.R. 3177) and the provisions of such regulations shall be applicable to this section and any violation of this section shall constitute a violation of such specific wage ceiling regulations.

(e) *Effective date.* This Supplement No. 86 shall become effective at 12:01 a. m., Central Standard Time, October 5, 1945.

(56 Stat. 765 (1942), 50 U.S.C. App. 961 et seq., (Supp. IV); 57 Stat. 63 (1943); 50 U.S.C. 964 (Supp. IV); 58 Stat. 632 (1944); Pub. Law 108, 79th Cong., E.O. 9250, 7 F.R. 7871; E.O. 9328, 8 F.R. 4681; E.O. 9577, 10 F.R. 8087; E.O. 9620, 10 F.R. 12033; Regulations of the Economic Stabilization Director, 8 F.R. 11960, 12139, 16702, 9 F.R. 6035, 14547, 10 F.R. 9478, 9628; regulations of the War Food Administrator, 9 F.R. 655, 12117, 12611, 10 F.R. 7609, 9581; 9 F.R. 831, 12807, 14206, 10 F.R. 3177)

Issued this 5th day of October 1945.

[SEAL] K. A. BUTLER,
Acting Director of Labor,
U. S. Department of Agriculture.

[F. R. Doc. 45-18640; Filed, Oct. 8, 1945; 11:18 a. m.]

TITLE 30—MINERAL RESOURCES

Chapter VI—Solid Fuels Administration for War

PART 602—GENERAL ORDERS AND DIRECTIVES

DIRECTION TO PERSONS SHIPPING COAL PRODUCED IN DISTRICT NO. 1

The following direction is issued:

Pursuant to Executive Order No. 9332 (8 F. R. 5355), SFAW Regulation No. 1 (8 F.R. 5832; 8 F.R. 16320; 10 F.R. 1724), and effective forthwith, all persons shipping bituminous coal produced in District No. 1 intended or destined for export are prohibited until further notice from making such shipments without special permit from SFAW. Pending further notice, the operation of any permit or authorization heretofore granted pursuant to SFAW Regulation No. 31 (10 F.R. 8538; 10 F.R. 11154; 10 F.R. 11739) is suspended. Applications for special emergency permits under this general notice of direction shall be filed with the SFAW Area Distribution Manager for District No. 1 and must state all pertinent facts necessary to enable SFAW to determine whether or not such coal should, in view of the emergency occasioned by widespread work stoppages in the coal mines, be retained within the United States.

Issued this 4th day of October 1945.

C. J. POTTER,
Deputy Solid Fuels
Administrator for War.

[F. R. Doc. 45-18553; Filed, Oct. 5, 1945; 11:27 a. m.]

PART 602—GENERAL ORDERS AND DIRECTIVES

DIRECTION SENT TO CERTAIN PRODUCERS IN DISTRICT NO. 1

The following direction has been sent to certain coal producers in District No. 1:

Pursuant to Executive Order No. 9332, SFAW Regulation No. 1, and effective forthwith, you are prohibited until further notice from supplying or shipping by rail or water from any mine, preparation plant, or railroad scales bituminous coal produced in District No. 1 to any person or for any use except the following: (1) Hospitals; (2) public utilities (as defined in Regulation No. 27); (3) railroads; (4) commercial dock operators on Great Lakes, tidewater or river; (5) vessel or bunker fuel, and colliery fuel. You are directed to hold on track maximum number no-bills. If compliance with this direction tends to curtail production or cause undue hardship, Area Distribution Manager authorized to give consignments by telephone and confirm in writing.

Issued this 4th day of October 1945.

C. J. POTTER,
Deputy Solid Fuels
Administrator for War.

[F. R. Doc. 45-18554; Filed, Oct. 5, 1945; 11:27 a. m.]

PART 602—GENERAL ORDERS AND DIRECTIVES

DIRECTION SENT TO COMMERCIAL DOCK OPERATORS ON THE GREAT LAKES, TIDEWATER AND RIVER

The following direction has been sent to commercial dock operators on the Great Lakes, tidewater and river:

Pursuant to Executive Order No. 9332, SFAW Regulation No. 1, and effective forthwith, you are prohibited until further notice from shipping bituminous coal ex-dock to any person or for any use except the following: (1) Hospitals; (2) public utilities (as defined in Regulation No. 27); (3) railroads; (4) vessel or bunker fuel and (5) in the case of commercial lake and tidewater docks only, space heating, except industrial space heating. If compliance with this direction tends to cause undue hardship Milton Almer, SFAW Area Distribution Manager, Minneapolis, Minnesota, for commercial lake dock operators, Borden Covel, Area Distribution Manager, Boston, Massachusetts, for commercial tidewater dock operators, and the Area Distribution Manager for the area in which commercial river docks are located, are authorized to grant relief by telephone and confirm in writing.

Issued this 5th day of October 1945.

C. J. POTTER,
Deputy Solid Fuels
Administrator for War.

[F. R. Doc. 45-18644; Filed, Oct. 8, 1945; 11:45 a. m.]

TITLE 32—NATIONAL DEFENSE

Chapter III—Bureau of Mines

PART 303—GENERAL LICENSE PERTAINING TO EXPLOSIVES AND INGREDIENTS

§ 303.8 *General License No. 8 pertaining to explosives and ingredients.* A general license is hereby granted under the Federal Explosives Act of December 26, 1941 (55 Stat. 863), as amended, to any person as defined in the act and regulations, who is not otherwise prohibited by law or by regulation or by proclamation of the War Department, the Attorney General, or any other Federal agency from doing so, to manufacture, distribute, possess, purchase, accept, receive, acquire, store, sell, issue, or otherwise dispose of and use explosives